

I.

Request

1. The Directorate-General for Foreign Policy of the Ministry of Foreign Affairs requested the Portuguese National Commission and the Federative Republic of Brazil in the Field of Research and Combatting Crime.
2. In the new wording of articles 10 and 11, the claims expressed by this National Data Protection Commission in its opinion have been generally accommodated.
3. The CNPD issues an opinion within the scope of its powers as the national authority for the control of personal data processing, conferred by paragraph 1 of article 43 and subparagraphs a) and c) of paragraph 1 of article 44 of Law No. 59/2019, of August 8, which approves the rules regarding the processing of personal data for the purposes of prevention, detection, investigation, or repression of criminal offenses or the execution of criminal sanctions, transposing Directive (EU) 2016/680 of the Parliament and the Council, of April 27, 2016.

II.

Analysis

4. In Opinion/2025/18, dated February 9, the CNPD expressed its views on the proposed Agreement between the Portuguese Republic and the Federative Republic of Brazil in the field of research and combatting transnational organized crime and terrorism, having presented five recommendations:
 - a) that adequate guarantees for the protection of personal data provided by Portuguese Law and European Union Law are ensured;
 - b) The explicit purposes of the personal data processing covered by the Agreement must be specified, and the categories of personal data associated with them must be indicated;
 - c) The Agreement must contain obligations regarding the security of personal data processing, and the means and effective conditions under which international data transfers occur must be better clarified;
 - d) It must also contain rules to recognize and guarantee the exercise of the rights of data subjects, as well as the specific conditions under which such rights may be derogated;
 - e) The Agreement must contain rules regarding administrative and/or judicial remedies for data subjects, which must be guaranteed in relation to any personal data processing resulting from this Agreement.
5. In the agreement currently under analysis, regarding the subject matter under consideration, it is noted that articles 9, 10, and 11 have been reworded, and an Annex has been added, titled:
6. The regulation of classified information exchanged between the Parties is referred to in this version, which directs the regulation to the Agreement for the Protection of Classified Information between the Portuguese Republic and the Federative Republic of Brazil, signed in Porto on October 13, 2005, approved by Decree No. 22/2006, of September 22, and in force between the Parties since 31.
7. This Agreement establishes the security rules applicable to all cooperation agreements or contracts that foresee the transmission of classified information, concluded or to be concluded by the competent national entities of the Parties or by authorized natural or legal persons for that purpose (article 1), with the national security entities responsible for the application of the Agreement: for the Portuguese Republic, the National Security Authority, Presidency of the Council of Ministers, and for the Federative Republic of Brazil.
8. Article 5 of the Agreement stipulates that the Parties will attribute the same level of security to all classified information transmitted, produced, or developed as that assigned to their own classified information of equivalent degree (subparagraph a)), and that access to classified information is limited to those who need to know and that, in the case of information classified as "Confidential" or higher, must be authorized with a security clearance issued by the competent authorities (subparagraph b)). It also provides that, in order to obtain and maintain comparable security standards, the national security entities shall, whenever requested, mutually provide information about their security standards, procedures, and practices for the protection of classified information.

9. Article 9 establishes that classified information will be transmitted between the Parties through channels jointly approved by the national security entities (subparagraph a)) and that the Parties may transmit classified information by electronic means, in accordance with the security procedures jointly approved by the national security entities.

10. Article 10 imposes that the transmitted classified information may only be used for the purposes for which it was transmitted and that each Party will ensure that all natural and legal persons receiving classified information comply with the obligations of this Agreement, to which is added the obligation of the receiving Party not to transmit classified information to a third Party without prior written authorization from the transmitting Party.

11. These rules have been incorporated into articles 10 and 11 of the Agreement under analysis.

12. In this Agreement, it is now provided:

a) in paragraph 9 of article 11, that the verification of non-compliance with the provisions regarding the processing and transfer of personal data is the responsibility of an independent control authority;

b) in subparagraph d) of paragraph 3 of article 11, that personal data shall be retained in a manner that allows for the identification of the individuals concerned only for the period necessary to achieve the purposes for which they were collected or for which they are subsequently processed, being deleted after that period; and also

c) in paragraph 7 of article 11, that the parties commit to adopting all information security measures, particularly against unauthorized access or...

unauthorized access to personal data, being responsible in case of incorrect or unauthorized transmission of such data.

13. However, the invocation of the 2005 Agreement is not sufficient to address the deficiencies noted in Opinion/2025/18, dated February 9, just as the rules introduced and listed in item 13 are not sufficient.

14. Indeed, the changes introduced, although welcomed, have not sufficiently clarified the principles stated in Article 10 of the Proposal for the Agreement.

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15. As noted in Opinion/2025/18, dated February 9, regarding the security of the processing of data subject to international transfers, it is necessary for the Parties to adopt appropriate technical and organizational measures, in accordance with the requirements of Article 31 of Law No. 59/2019.

16. What is provided for in this Agreement is the confidentiality of classified information, with the guarantees provided by Article 11 of the Agreement for the Protection of Classified Information being inferior to those enshrined in Article 31 of Law No. 59/2019, dated August 8.

17. It is also recalled that the transfer of personal data to a third country can be carried out based on an adequacy decision by the European Commission, as provided for in Article 38, paragraph 1 of Law 59/2019, noting that Brazil does not enjoy an adequacy decision.

18. Consequently, transfers can only be made if adequate guarantees are provided by the data controllers and on the condition that data subjects enjoy enforceable rights and have effective remedies available (subparagraph a) of paragraph 1 of Article 39 of the aforementioned Law), ensuring an adequate level of protection equivalent to that guaranteed in the European Union.

19. In Brazil, Law 13.709, dated August 14, 2018, General Data Protection Law, guarantees the privacy of personal data, even in cases where the data subject to processing originates from outside the national territory, provided that it results from communication or shared use of data with Brazilian data controllers, as long as the country of origin provides an adequate level of protection under that Law (Article 4, Item IV).

20. However, Law 13.709 is not applicable to the processing of personal data carried out for exclusive purposes of public security, defense, and activities of investigation and repression of criminal offenses (Article 4, item III, subparagraph d)).

21. Attention is also drawn to the wording of subparagraph c) of paragraph 3 of Article 11, which states that [personal data] must be accurate and, where necessary, kept up to date, and all reasonable measures must be taken to ensure this.

22. One of the principles that shapes the processing of personal data is precisely that of accuracy

(subparagraph d) of paragraph 2 of Article 4 of Law No. 59/2019, dated August 8), so it is noted that the wording differs from that of the cited Law, which needs to be corrected to ensure compliance with the intent of the Law.

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23. The processing of personal data provided for in Item III will be governed by specific legislation.

24. Such legislation, however, has not yet been approved, and there is still a legislative gap in this matter.

25. Therefore, the text of the Agreement must contain all the norms that ensure that the level of protection of the data processed under this instrument is essentially equivalent to that guaranteed in the Union.

26. It should also be provided that the requested Party is obliged to notify the receiving Party of the data whenever such data require rectification, must be deleted, or are subject to other restrictions, and consequently, the obligation for the receiving Party to comply with this notification should be foreseen.

III. Conclusion

27. In light of the terms and grounds presented, the CNPD recommends:

a) The Agreement must contain norms that address the lack of data protection legislation in this domain in the Federative Republic of Brazil, to ensure adequate guarantees of personal data protection as provided by Portuguese and Union law;

b) The Agreement must contain concrete obligations regarding the security of personal data processing, and the means and effective conditions under which international data transfers occur should be better clarified.

c) The wording of subparagraph c) of paragraph 3 of Article 11 should be amended so that its content corresponds to that of subparagraph d) of paragraph 2 of Article 4 of Law No. 59/2019, dated August 8, that is: [the data must be accurate and, where necessary, kept up to date].

Lisbon, February 17, 2025

Paula Meira Lourenço (President)